

II. & 12 GEO. 6.

*Ministry of Health
Provisional Order Confirmation
(Gloucester) Act, 1948.*

Ch. xxxiii.



CHAPTER xxxiii.

An Act to confirm a Provisional Order of the Minister of Health relating to the city of Gloucester.

[30th July 1948.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional Order which needs confirmation by Parliament: c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Gloucester) Act 1948. Short title.

SCHEDULE.

CITY OF GLOUCESTER

Provisional Order partially repealing and altering local Acts.

WHEREAS the mayor aldermen and citizens of the city of Gloucester acting by the council (in this order called "the Corporation") are the local authority for the purposes of the Public Health Act 1875:

1 & 2 Geo. 5.
c. xcii.

And whereas under section 123 of the Gloucester Corporation Act 1911 (in this Order called "the Act of 1911") the Corporation have power subject as therein provided to close to the public and to use for exhibitions and entertainments or for meetings any swimming bath belonging to them:

25 & 26 Geo. 5.
c. lxxxvii.

And whereas under section 127 of the Gloucester Corporation Act 1935 (in this Order called "the Act of 1935") the Corporation have power to provide concert halls public halls pavilions bandstands assembly rooms and other public buildings and to let any such building for the purpose of meetings and entertainments:

And whereas the Corporation have made application to the Minister of Health for the issue of a Provisional Order partially to repeal alter or amend the Acts of 1911 and 1935:

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and
commencement.

1. This Order may be cited as the Gloucester Order 1948 and shall come into operation on the date of the Act of Parliament confirming it.

Use of certain
buildings for
purpose of
entertainments.

11 & 12 Geo. 6.
c. 26.

2.—(1) The Corporation may use or permit to be used for the purposes of and subject to the provisions of section 127 of the Act of 1935 or section 132 of the Local Government Act 1948—

- (a) the Assembly Room Guildhall Gloucester;
- (b) the Assembly Hall Technical College Brunswick Road Gloucester;
- (c) the Wheatstone Hall Brunswick Road Gloucester;
- (d) any premises provided or acquired under the said section 127;
- (e) any buildings for the time being in or upon any park or recreation ground vested in the Corporation or under their control;

and may use the Princes Hall as aforesaid or permit it to be used as aforesaid after the expiration of the lease under which it is held from the Corporation at the coming into operation of this Order.

(2) The Corporation may make byelaws for securing good and orderly conduct during any meeting entertainment or dance held or given in pursuance of section 127 of the Act of 1935 or section 132 of the Local Government Act 1948.

(3) The Secretary of State shall be the confirming authority for any byelaws made under this section.

(4) Section 123 of the Act of 1911 is hereby repealed.

3. Section 121 of the Act of 1935 (which empowers the Corporation to contribute to the expenses of the sheriff of the city a sum not exceeding one hundred pounds in any one year) shall have effect as if for the words "one hundred pounds" there were substituted the words "one hundred and fifty pounds." Amendment of section 121 of Act of 1935.

4. The Minister of Health may hold any inquiry which he may deem necessary for the purposes of this Order and subsections (2) to (5) of section 290 of the Local Government Act 1933 shall apply accordingly. Inquiries and expenses.
23 & 24 Geo. 5.
c. 51.

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